Intestacy: What If You Don't Have An Estate Plan?

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Key Takeaways

- If there's no will, intestacy laws determine who gets what
- Unhappiness and disputes over your estate can be prevented
- You can appoint a legal guardian for your children through a will

If you pass away without leaving a will, everything you own (your estate) will be distributed according to Singapore's Intestate Succession Act.

What Is Intestacy?

Intestacy is the term used for someone who has passed away without a Will.

The rules are as follows:

Survivors	Who gets what
Spouse (no parents or child)	Spouse gets everything
Spouse, children (with or without parents)	Spouse gets half, children get the other half in equal portions
Children (no spouse)	Children get everything in equal portions; grandchildren can claim their parent's share in equal portions if their parent is deceased
Spouse, parents (no children)	Spouse gets half, parents get half in equal portions
Parents (no spouse or children)	Parents get everything in equal portions
Brothers and sisters (no spouse, children or	Brothers and sisters get everything in equal portions; if a brother or sister is

parents)	deceased, their children can claim their share
Grandparents (no spouse, children, parents or siblings)	Grandparents will each get the estate in equal portions
Uncles and aunts (no spouse, children, parents, siblings or grandparents)	Uncles and aunts get the estate in equal portions
None	Everything goes to the government

Note: The Intestate Succession Act does not apply to Muslims. The estate of a Muslim is governed by Muslim law.

Consequences Of Intestacy

Should you pass away intestate, a number of issues may arise.

Uncertainty over guardians

If both parents pass away at the same time, guardianship over their children is uncertain. Disagreements may arise as to who is the most suitable person to be the guardian. An ex-spouse may be able to gain access to the assets as the other parent of the children.

Delay in settlement

Without a will, the probate process gets more complicated. Distribution of

assets may take longer resulting in higher legal costs.

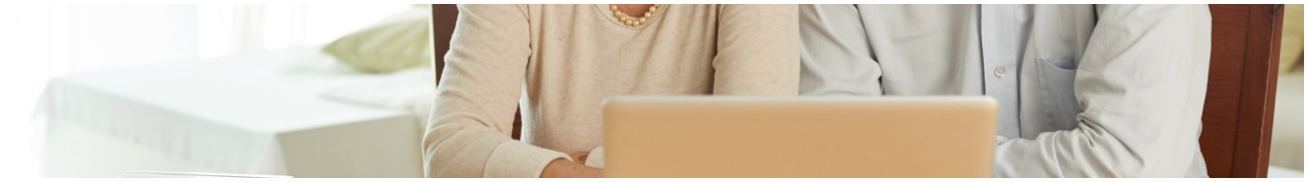
Unintended consequences

Distribution of assets may not reflect what the deceased intended. Elderly parents will be excluded if the deceased leaves behind a spouse and children. When appointing administrators, the law gives priority to the next-of-kin of the deceased person's family. This may not be in accordance with your wishes.

Muslim Estates

For Muslim estates, the beneficiaries must apply to the Syariah Court for an Inheritance Certificate to establish the share of each beneficiary. A Grant of Probate or Letters of Administration may need to be obtained after the Inheritance Certificate has been issued.

Muslims can dispose or give away their estates through a *hibah* or *nuzriah*. However, through a will, Muslims can only give away a third of their estate to persons who are not already entitled under the Inheritance Certificate.



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